

VCU333368 Fuentes, Amanda vs. General Motors, LLC

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-07

Motion: Demurrer to First Amended Complaint

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: 15cda5cfe36aac04401551d260d5d22d0ed9aeb4d4909a9397dd8ade29a2611e

Re: Fuentes, Amanda vs. General Motors, LLC

Case No.: VCU333368

Date: July 7, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Demurrer to First Amended Complaint

Tentative Ruling: To sustain the demurrer to the fourth cause of action without leave to amend; to sustain the demurrer to the fifth cause of action with leave to amend; Plaintiff shall have ten (10) days to file an amended complaint.

Facts

In this matter, Plaintiff alleges that on or about July 30, 2020, Plaintiff entered into a warranty contract with Defendant GM regarding a 2020 Cadillac CT5, vehicle identification number 1G6DN5RK4L0136420 (hereafter "Subject Vehicle") (FAC ¶16.)

Plaintiff further alleges that defects and nonconformities arose and included transmission defects, engine defects, and electrical defects. (FAC ¶13.)

Plaintiff alleges discovery of the alleged wrongful conduct on February 2, 2026 when Plaintiff requested a buyback and/or restitution of the Subject Vehicle from GM, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them. (FAC ¶27.) Plaintiff generally alleges tolling under equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling. (FAC ¶26.)

Relevant here, as to the fourth case of action for breach of implied warranty, Plaintiff alleges that "At the time of sale, the subject vehicle was sold with one or more latent defect(s) as set forth above. The existence of the said latent defect(s) constitutes a breach of the implied warranty because the Vehicle (1) does not pass without objection in the trade under the contract description, (2) is not fit for the ordinary purposes for which such goods are used, (3) is not adequately contained, packaged, and labelled, and (4) does not conform to the promises or affirmations of fact made on the container or label."

(FAC ¶47.)

As to the fifth cause of action for fraudulent inducement, Plaintiff alleges:

“53. Defendant GM committed fraud by allowing the Vehicle to be sold to Plaintiff without disclosing that the Vehicle and its 10-speed transmission were defective and susceptible to sudden and premature failure. Plaintiff purchased the Subject Vehicle equipped with GM's defective 10-speed transmission.

...

55. On or about July 30, 2020 when vehicle odometer reading was 79,751, Plaintiff experienced defects and non-conformities in the Vehicle including, but not limited to shuddering, jerking, hesitation on acceleration, car turning off and not going into drive mode at stop lights, loss of power, oil leaks, stalling.

56. On nine occasions, Plaintiff presented the Vehicle to Defendant GM's authorized repair facility Giant Chevrolet Cadillac, with complaints.

...

58. Thereafter, Plaintiff continued to experience symptoms of the defects in the Vehicle, despite Defendant's representation that the various defects had been repaired.

...

61. Plaintiff is informed, believes, and thereon alleges that prior to Plaintiff acquiring the Vehicle, Defendant GM was well aware and knew that the 10-speed transmission installed on the Vehicle was defective but failed to disclose this fact to Plaintiff prior to and at the time of sale and thereafter.” (FAC ¶¶53, 55, 56, 58 61.)

Further, that GM knew the transmission had various defects that could result in “(1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, or juddering; (5) surging and/or inability to control the vehicle's speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"), (7) failure or replacement of the transmission” and that these defects present a safety hazard. (FAC ¶62.)

Further, that GM acquired knowledge of the defect based on sources not available to consumers, including testing data, consumer complaints, and aggregate warranty data. (FAC ¶63.)

Further, Plaintiff alleges “Plaintiff is a reasonable consumer who interacted with sales representatives, considered Defendant GM's advertisement, and/or other marketing materials concerning GM Vehicles prior to purchasing Subject Vehicle. Had Defendant GM and its dealership(s) revealed the Transmission Defect in these disclosures, Plaintiff would have been aware of it and would not have purchased Subject Vehicle.” (FAC ¶64.)

Defendant demurs to the fourth cause of action on the basis of the statute of limitations.

Defendant demurs to the fifth cause of action on the basis of the statute of limitations, as to lack of specificity, failure to allege a duty to disclose and failure to plead GM had exclusive knowledge. Further, that the economic loss rule bars the fraud

cause of action.

In opposition, Plaintiff argues the complaint does not, on its face, demonstrate that the statute of limitations applies regarding the fourth cause of action and that Plaintiff has sufficiently pled the fifth cause of action.

Authority and Analysis

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurrer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But "doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

Committee for Green Foothills v. Santa Clara County Bd. Of Supervisors (2010) 48 Cal.4th 32, 42 states, " 'A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" [Citation.]" [Citation.]"

Fourth Cause of Action – Implied Warranty

"The Song-Beverly Act does not include its own statute of limitations. [Citation.] California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code." (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305-1306.)

As noted by Defendant, implied warranty claims are subject to a four-year statute of limitations under the California UCC. (Comm. Code, § 2725(1).)

Defendant argues that the breach of implied warranty claim accrues upon purchase of the Subject Vehicle and that delayed discovery does not apply to implied warranty claims, citing Nguyen v. Nissan North America, Inc. (2020) 487 F.Supp.3d 845, 854 n.3. The Court notes Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 132 agrees, noting that delayed discovery does not apply to implied warranty claims under Commercial Code section 2725. The Court notes "In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (Mexia v. Rinker Boat Co. (2009) 174 Cal.App.4th 1297,

1305.)

Therefore, where the complaint alleges a purchase date of July 30, 2020 and this complaint was filed March 27, 2026, the claim for breach of implied warranty is beyond the four-year statute of limitations.

Therefore, the Court sustains the demurrer to the fourth cause of action without leave to amend.

Fifth Cause of Action - Concealment

Statute of Limitations

Defendant contends the statute of limitations begins the date the Vehicle was purchased on July 30, 2020 and that the three-year statute of limitations for fraud therefore bars Plaintiffs' fraudulent inducement - concealment cause of action against Defendant, as the complaint was filed March 27, 2026.

A three-year limitations period applies to fraud claims. (Code Civ. Proc. § 338, subd. (d).)

Under the delayed discovery rule, a cause of action accrues at the time when the cause of action is complete with all its elements. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806-807.) The test for when the statute of limitations on a claim starts to run under the delayed discovery rule is "whether the plaintiff has information of circumstances sufficient to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his or her investigation." (McGee v. Weinberg (1979) 97 Cal.App.3d 798, 803.)

"In order to invoke this special defense to the statute of limitations, the plaintiff must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (Saliter v. Pierce Brothers Mortuaries (1978) 81 Cal.App.3d 292, 300.) "The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer." (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1319 (internal quotations omitted).

Further, "[i]t has long been established that the defendant's fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it. [Citation.] Like the discovery rule, the rule of fraudulent concealment is an equitable principle designed to effect substantial justice between the parties; its rationale is that the culpable defendant should be estopped from profiting by his own wrong to the extent that it hindered an 'otherwise diligent' plaintiff in discovering his cause of action. [Citations.]" (Bernson v. Browning-Ferris Indus. (1994) 7 Cal.4th 926, 931.)

The Court does not believe the statute of limitations started until after purchase of the Vehicle and after some presentation of the Vehicle to an authorized dealer based on the alleged defect.

However, the first amended complaint alleges "On or about July 30, 2020 when vehicle odometer reading was 79,751, Plaintiff experienced defects and non-conformities in the Vehicle including, but not limited to shuddering, jerking, hesitation on acceleration, car turning off and not going into drive mode at stop lights, loss of power, oil leaks, stalling." (FAC ¶55.)

Defendant notes this in the opposition, arguing:

"Only one of those presentations was dated, July 30, 2020 (which also happens to be the same date the vehicle was purchased), is well before this lawsuit was filed. (Id., ¶ 55.) On the contrary, given nine presentations and a presentation in

July 2020, by Plaintiff's own allegations they should have discovered the alleged defects with reasonable diligence, which is first required before tolling can be applied."

Further, this allegation lacks sufficient specificity to establish delayed discovery or other tolling theories. (E-Fab, Inc., supra, 153 Cal.App.4th at 1319.)

Therefore, the Court sustains the demurrer with leave to amend as to this issue. Therefore, the Court will not rule on the other arguments regarding other issues of specificity, lack of duty, transactional relationship and other arguments in support of the demurrer.

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

Therefore, the Court orders an amended complaint as to the fifth cause of action filed no later than ten (10) days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.